
Appeal Decision

Site visit made on 5 August 2026

by **S F Barnes MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21st August 2026

Appeal Ref: 6006959

Titchmarsh Marina Ltd, Coles Lane, Walton-on-the-Naze, Essex CO14 8SL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Christopher Titchmarsh of Titchmarsh Marina (WoN) Ltd against the decision of Tendring District Council.
 - The application Ref is 25/00919/FUL.
 - The development proposed is replacement of existing workshop.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. A revised National Planning Policy Framework (Framework) was published during the consideration of the appeal. I have taken account of this in making my decision. As the changes are not material to the issues before me and would not alter my conclusions, it has not been necessary to seek further comments from the main parties.

Main Issue

3. The main issue is the effect of the proposal on flood risk.

Reasons

4. The appeal site concerns an existing marina engineering workshop set within a much wider area used as a boatyard. The proposal adjoins other such workshop facilities.
5. The site lies within the Environment Agency's ('EA') fluvial and tidal Flood Zone 3. The Framework at F4 sets out that a site specific flood risk assessment should accompany all development proposals in these locations. Policy PPL1 of the Tendring District Local Plan 2013-2033 and Beyond Section 2 (2022) ('Local Plan') likewise requires this.
6. Planning permission was granted on a nearby part of the boatyard for a development of a similar nature in June 2025 (LPA Ref. 25/00443/FUL). Since that decision was made, I am advised that the EA Flood Zone maps were revised and the appeal site re-designated from the lower risk area of Flood Zone 1. As is explained in the supporting text at paragraph 7.1.3 of the Local Plan, the Council's Policies Maps and Local Maps are not definitive of the Flood Zones which may change over time, in which case the EA maps shall prevail. Overall, I am satisfied that the site is within Flood Zone 3. Whether or not the area of water known as the

Twizzle could accurately be described as a river would not therefore alter the site's Flood Zone status or the requirement for a supporting flood risk assessment.

7. It is put to me that the land on which the site stands was raised in the 1970s. Even so, there is no pertinent evidence before me which demonstrates that this would negate the need to assess flood risk on the basis of current evidence and policy requirements. Moreover, the raising of the land relative to its former level and its proximity to Mean High Water Springs and High Water Springs are not, in themselves, substantive indicators of the site's present flood risk, which must be considered having regard to contemporary flood risk data and taking account of potential effects of climate change. No such evidence-based assessment is before me.
8. The submission of a site-specific flood risk assessment would allow the full consideration of the likely impact of the proposal on flood risk and for any necessary resilience and mitigation measures to be identified. In the absence of such evidence, I cannot be satisfied that the proposal and its intended users would be safe from flooding.
9. The fact that the proposed building would replace an existing one does not automatically justify granting planning permission. That is particularly so where it could result in harm or fail to take opportunities to reduce flood risk. In any event, there is little detail regarding the presence of any flood risk mitigation or resilience features of the existing building, so I am not able to make a meaningful comparison in this respect.
10. For these reasons, it has not been demonstrated that the proposal would have an acceptable effect on flood risk. This would conflict with the relevant provisions of Policy PPL1 of the Local Plan, which seeks to reduce the risk of flooding through the appropriate location and design of new development, having regard to the likely impact of climate change. There would also be conflict with the relevant provisions in the Framework relating to flood risk.

Other Matters

11. The proposal seeks to provide a modern, better insulated replacement workshop. However, little quantified evidence is before me to demonstrate the extent of any improvement in energy efficiency. Accordingly, this carries only limited weight.
12. Whilst I recognise the convenience of replacing the existing workshop with the proposed building in a nearby location on a similar timescale, this would principally deliver a private benefit to the appellant. In the circumstances of this case, that would neither outweigh the harm identified or provide an overriding justification for the development.

Conclusion

13. For the reasons given, the proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

S F Barnes

INSPECTOR